

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

MAURICE SIMPSON,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
DETECTIVE MICHAEL ROSSELLO;
DETECTIVE JOHN SHEENY;
SGT. MATTHEW STARRANTINO;
SGT. SHAUN MARA,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Queens County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
January 11, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401

Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

DETECTIVE MICHAEL ROSSELLO
DETECTIVE JOHN SHEENY
SGT. MATTHEW STARRANTINO
SGT. SHAUN MARA
1 Police Plaza
New York, New York 10007

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VERIFIED COMPLAINT

Plaintiff Maurice Simpson, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2021-PI000725.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on April 26, 2020.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of Queens, because the Plaintiff's claims arose in the County of Queens.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is a resident of Tarrant County, Texas. Plaintiff was at all times relevant to this action a resident of Queens County in the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Detective Michael Rossello (Shield No. 1732, Tax ID No. 939374) (hereinafter "Rossello") was at all relevant times described herein an NYPD officer, employed

by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Det. Rossello is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Det. Rossello is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Detective John Sheeny (Shield No. 7177, Tax ID Unknown) (hereinafter “Sheeny”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

16. Det. Sheeny is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

17. Det. Sheeny is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

18. Defendant Sergeant Matthew Starrantino (Shield No. Unknown, Tax ID No. 929211) (hereinafter “Starrantino”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

19. Sgt. Starrantino is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

20. Sgt. Starrantino is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

21. Defendant Sergeant Shaun Mara (retired) (Shield No. 5025, Tax ID No. 922699) (hereinafter “Mara”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

22. Sgt. Mara is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

23. Sgt. Mara is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

24. Collectively, Det. Rossello, Det. Sheeny, Sgt. Starrantino, and Sgt. Mara are referred to as the “Individual Defendants.”

25. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

26. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

27. On May 4, 2016 Plaintiff was riding the subway from Queens to Brooklyn for work when he received a call from his then-girlfriend that NYPD officers, including Det. Sheeny, were at their home asking to speak to Plaintiff.

28. Plaintiff voluntarily met the officers outside a subway stop in Brooklyn where Det. Sheeny and Det. Rossello stated that Plaintiff's name "came up" in an investigation. Plaintiff rode with the officers to the 114th Precinct where they questioned him and placed him in a lineup.

29. After conducting multiple faulty identification procedures in an effort to implicate Plaintiff, the Individual Officers placed Plaintiff under arrest for three separate armed robberies.

30. Eventually, these faulty identification procedures, along with false evidence and statements, were used by the Individual Defendants to initiate prosecution against Plaintiff without probable cause in the criminal action designated *People v. Simpson*, CR-018255-17QN.

31. Plaintiff was detained as a result of the Individual Defendants' actions the 114th Precinct, Central Booking, and Rikers Island, where Plaintiff was held until December of 2019 while he was awaiting retrial for one of the three robberies for which he was arrested. Plaintiff was never prosecuted for any other crimes.

32. Plaintiff was finally free from this malicious prosecution when the Queens County District Attorney's Office withdrew their Notice of Appeal on or about October 14, 2020, following the dismissal of all charges on or about February 19, 2020. This was a favorable termination.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

33. Det. John Sheedy has a history of violating people's civil rights while employed by the NYPD, including allegations that he wrongfully held a suspect for more than eight hours after a complaining witness failed to identify the suspect in a line-up. The civil matter arising from these allegations is pending Eastern District of New York, *see Abraham v. The City of New York et al*, Case No. 16-cv-02427. Moreover, Sheeny was charged with abuse of authority by the Civilian Complaint Review Board ("CCRB") in 2014 for his participation in an unconstitutional entry and/or search of a home, which also gave rise to civil litigation which ended in settlement.

34. Sgt. Matthew Starrantino also has a storied history of violating the rights of those he is tasked to protect, and doing so with racial animus against people of color. For example, Starrantino illegally stopped a fifteen year old Black male and placed him into a chokehold while another officer used his nightstick as a club to assault the teenager. Charges against Starrantino for of abuse of authority and use of a chokehold were substantiated by the CCRB in 2010.

35. Additionally, in a case currently pending before the Eastern District of New York, a retired police officer has alleged that Starrantino, along with a number of NYPD officers, intentionally and maliciously harassed the Plaintiff at on multiple occasions at a bar she owned, with the goal of shutting down her business. The Plaintiff in *Glover v. City of New York, et al.*, Case No.15-cv-04899, also alleges in her Second Amended Complaint that Starrantino threatened her with physical violence and arrest while using racist language, issued a serious of bogus summonses against her, repeatedly ordered raids on the business, and told patrons to stay away, eventually leading to the bar's closing after only one year in business.

36. Despite these repeated incidents of misconduct, the City of New York of New York has failed to meaningfully discipline or properly supervise the Individual Defendants.

THE INJURIES TO PLAINTIFF

37. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

38. These damages include, but are not limited to, the loss of liberty and emotional damages associated with Plaintiff's prolonged pre-trial detention while the Individual Defendants worked to secure a conviction against Plaintiff at any cost, including fabricating evidence and conducting improper identification procedures.

39. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

40. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges in favor of Plaintiff while he was awaiting a second trial.

43. The grand jury indictment is a nullity because it was procured using false evidence and statements and by withholding exculpatory evidence and statements.

44. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from prosecution without probable cause, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

45. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

46. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court, and withheld exculpatory evidence from the same.

50. The Individual Defendants also used faulty, unreliable, and suggestive identification procedures to wrongfully identify Plaintiff as the perpetrator of a crime he did not commit.

51. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution to be free from prosecution based on false

statements, as well as violations of *Brady v. Maryland*, 373 U.S. 83 (1963). The Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

52. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**THIRD CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

54. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

55. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

56. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

57. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

58. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

59. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

62. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**FIFTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT AGAINST
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. Plaintiff was arrested, handcuffed, and detained by the Individual Defendants in the absence of and/or upon the dissipation of any probable cause.

65. That at all times hereinafter mentioned, said confinement and restraint of liberty was not otherwise privileged.

66. Plaintiff was conscious of the confinement and did not consent to such confinement.

67. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

68. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

69. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. The Individual Defendants initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

72. Any presumption of probable cause conferred by the grand jury indictment is rebutted because the indictment was procured through false evidence and statements, and by withholding exculpatory evidence.

73. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

74. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

75. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

78. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

79. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

80. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

82. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

83. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

84. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

85. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

87. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

88. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, .

89. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

90. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

91. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

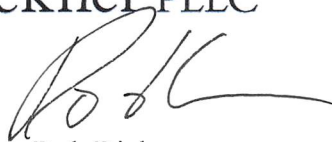
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
January 11, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

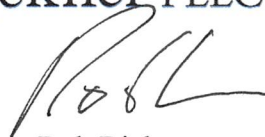
I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
January 11, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff